

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF MAKSIMOV AND OTHERS v. RUSSIA

(Applications nos. 30757/17 and 29 others –
see appended list)

JUDGMENT

STRASBOURG

9 February 2023

This judgment is final but it may be subject to editorial revision.



In the case of Maksimov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 January 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. Some applicants also raised other complaints under the provisions of the Convention and its Protocols.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. LOCUS STANDI

6. The Court notes that one of the applicants, Mr Vladimir Vyacheslavovich Maksimov (application no. 30757/17), died on 7 June 2021 and his son Mr Vitaliy Vladimirovitch Maksimov, born on 10 October 2006 and represented by his mother Mrs Svetlana Vladimirovna Lobanova, expressed a wish to pursue the application.

7. The Court has accepted that the next-of-kin may in principle pursue the application, provided that he or she has sufficient interest in the case

(see *Centre for Legal Resources on behalf of Valentin Câmpeanu v. Romania* [GC], no. 47848/08, § 97, ECHR 2014) and in ensuring that justice is done, even after the applicant's death (see *Malhous v. the Czech Republic* (dec.) [GC], no. 33071/96, ECHR 2000-XII).

8. Having regard to the circumstances of the present case, the Court accepts that Mr Vitaliy Vladimirovitch Maksimov has a legitimate interest in pursuing the application in the stead of his late father. The Court will therefore continue dealing with the case at his request. For convenience, it will, however, continue to refer to the late applicant in the present judgment.

III. ALLEGED VIOLATION OF ARTICLE 6 § 1 OF THE CONVENTION

9. The applicants complained principally of the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings. They relied, expressly or in substance, on Article 6 § 1 of the Convention.

10. The relevant principles of the Court's case-law concerning the requirement of impartiality under Article 6 § 1 of the Convention can be found in the leading case of *Karelin v. Russia* (no. 926/08, §§ 51-57, 20 September 2016, with further references). In that case the Court assessed the national rules of administrative procedure and concluded that the statutory requirements allowing for the national judicial authorities to consider an administrative offence case which falls within the ambit of Article 6 of the Convention under its criminal limb, in the absence of a prosecuting authority, was incompatible with the principle of objective impartiality set out in Article 6 of the Convention.

11. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion of domestic remedies (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017) and having due regard to the issue of compliance with the six-month period under Article 35 § 1 of the Convention (see *Saakashvili* v. Georgia (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID- related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of the complaints in the present case.

12. These complaints are therefore admissible and disclose a breach of Article 6 § 1 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

13. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not

manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention and the Protocols thereto in the light of its well-established case-law (see *Frumkin v. Russia*, no. 74568/12, §§ 81-142, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful deprivation of liberty, and *Korneyeva v. Russia*, no. 72051/17, §§ 62-65, 8 October 2019, concerning the right not be tried or punished twice in the criminal proceedings).

14. As regards other complaints under Article 6 of the Convention about the administrative-offence proceedings, submitted by the applicants, the Court, having reached the conclusion about the lack of impartiality of the tribunal under Article 6 of the Convention (see paragraph 12 above), does not consider it necessary to examine them separately.

V. REMAINING COMPLAINTS

15. Some applicants also raised other complaints under various Articles of the Convention.

16. The Court has examined the applications and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto.

17. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

18. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

19. Regard being had to the documents in its possession and to its case-law (see, in particular, *Kuratov and Others v. Russia* [Committee], nos. 24377/15 and 2 others, 22 October 2019), the Court considers it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* that Mr Vitaliy Vladimirovich Maksimov has standing to pursue application no. 30757/17 in the stead of the late applicant, Mr Vladimir Vyacheslavovich Maksimov;

3. *Declares* the complaints concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine separately further complaints under Article 6 of the Convention raised by some applicants about the administrative-offence proceedings, and *dismisses* the remainder of the complaints as inadmissible;

4. *Holds* that these complaints disclose a breach of Article 6 § 1 of the Convention concerning the lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings;

5. *Holds* that there has been a violation of the Convention and its Protocols as regards the other complaints raised under well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that the award in respect of Mr Vladimir Vyacheslavovich Maksimov (application no. 30757/17) should be paid to his heir, Mr Vitaliy Vladimirovich Maksimov;
   (c) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

7. *Dismisses* the remainder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 9 February 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 6 § 1 of the Convention
(lack of impartiality of the tribunal in view of the absence of the prosecuting party in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	30757/17 12/04/2017	**Vladimir Vyacheslavovich MAKSIMOV** 1972 Deceased in 2021 Heir: Vitaliy Vladimirovich Maksimov		fine of RUB 5,000	07/12/2016, Volskiy District Court of Saratov Region		1,000
2.	30781/17 13/04/2017	**Nikolay Vasilyevich BALYNIN** 1970	Kostyushev Vladimir Yuryevich Moscow	fine of RUB 30,000, suspension of driving licence for 1 year and 7 months	21/03/2017, Frunzenskiy District Court of Ivanovo		1,000
3.	3309/18 11/12/2017	**Anatoliy Andreyevich PROKOPOVICH** 1996	Peredruk Aleksandr Dmitriyevich St Petersburg	administrative detention of 3 days, fine of RUB 10,000	04/07/2017, St Petersburg City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escort to the police station on 12/06/2017-13/06/2017 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; unrecorded detention until escort to the court on 13/06/2017. The applicant raised the complaint in the course of the administrative proceedings against him. Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - Final decision in both sets of proceedings – 04/07/2017, St Petersburg City Court; Art. 19.3 § 1 CAO and Art. 20.2 § 5 CAO; overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings with substantially the same facts underlying his conviction in the first set of proceedings.	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Penalty	Date of final domestic decision Name of court	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	12786/18 06/03/2018	**Arseniy Samvelovich ABRAAMYAN** 1989	Memorial Human Rights Centre Moscow	fine of RUB 10,000	06/09/2017, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and escort to the police station for the sole purpose of drawing up a record of administrative offence and subsequent detention on 26/03/2017 in excess of 3 hours - there were no reasons to take the applicant to the police station since the record could be drawn on the spot (see *Korneyeva* v. Russia, no. 72051/17, § 34, 8 October 2019) and the applicant's detention exceeded 3 hours. The applicant raised this complaint before the domestic courts.	3,900
5.	12791/18 06/03/2018 and 33691/19 14/06/2019	**Vladislav Nikolayevich TOKAREV** 1997	Memorial Human Rights Centre Moscow	fines of RUB 15,000 and RUB 10,000	06/09/2017, Moscow City Court and 14/12/2018, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 26/03/2017 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence (the complaint was raised in the course of the administrative proceedings) and - unlawful (unjustified) arrest on 28/10/2018; detention in excess of 3 hours (see *Frumkin* v. Russia, no. 74568/12, §§ 147-52, Reports of Judgments and Decisions 2016 (extracts)) Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Anti-Government manifestation in Tverskaya street on 28/10/2018. Applicant was subject to administrative charges under Article 20.2 § 5 of CAO and fined RUB 10,000.	3,900
6.	16107/18 27/03/2018	**Zaurbek Vladimirovich KORTYAYEV** 1991	Galuyev Agube Ruslanovich Vladikavkaz	fine of RUB 30,000, suspension of driving license for 1 year and 6 months	22/03/2018, Sovetskiy District Court of Vladikavkaz		1,000
7.	16977/18 31/03/2018	**Ivan Sergeyevich GRAFSKIY** 1992	Memorial Human Rights Centre Moscow	fine of RUB 15,000	04/10/2017, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - on 26/03/2017 the applicant was arrested and escorted to the police station - no reasons why the administrative offence record could not be compiled on the spot; the applicant's arrest exceeded 3 hours. Complaint raised on appeal (see the judgment of the appeal court).	3,900

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8.	16984/18 31/03/2018	**Rustam Dzhamshidovich IBRAGIMOV** 1963	Memorial Human Rights Centre Moscow	fine of RUB 10,000	30/10/2017, Moscow City Court		1,000
9.	17483/18 04/04/2018	**Sergey Grigoryevich GRITSENKO** 1956	Memorial Human Rights Centre Moscow	fine of RUB 15,000	16/10/2017, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - on 02/04/2017 the applicant was arrested and taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Complaint raised in the appeal proceedings (see the judgment of the appeal court)	3,900
10.	17590/18 28/03/2018	**Mark Olegovich PASHCHENKO** 1999	Sergeyeva Irina Vadimovna Moscow	administrative detention of 15 days	10/11/2017, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - on 05/11/2017 at 1 p.m. the applicant was arrested and detained until on 07/11/2017 at 5 p.m. when he was convicted of an administrative offence. Complaint raised on appeal.	3,900
11.	1087/19 03/12/2018	**Vyacheslav Sergeyevich MOSIN** 1981	Kulakov Yevgeniy Valeryevich Arkhangelsk	fine of RUB 30,000	26/11/2018, Solombarskiy District Court of Arkhangelsk		1,000
12.	16009/19 06/03/2019	**Dmitriy Viktorovich SYPCHENKO** 1982	Kulakov Yevgeniy Valeryevich Arkhangelsk	suspension of driving licence for 1 year and 6 months, fine of RUB 30,000	23/10/2018, Solombalskiy District Court of Arkhangelsk		1,000
13.	197/20 18/12/2019	**Aleksey Valeryevich CHALIKOV** 1987	Memorial Human Rights Centre Moscow	fine of RUB 10,000	30/07/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under Article 20.2 § 6 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov, administrative fine of RUB 10,000. Moscow City Court on 30/07/2019 (appeal decision).	3,900

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14.	204/20 18/12/2019	**Aleksandr Vladimirovich MARKELLOV** 1994	Memorial Human Rights Centre Moscow	fine of RUB 10,000	02/08/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under Article 20.2 § 6 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov, administrative fine of RUB 10,000. Moscow City Court on 02/08/2019 (appeal decision).	3,900
15.	1838/20 27/12/2019	**Vadim Vadimovich VOSTOKOV** 1966	Memorial Human Rights Centre Moscow	fine of RUB 15,000	08/08/2019 Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under Article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 15,000. Moscow City Court on 08/08/2019 (appeal decision).	3,900
16.	11980/20 20/02/2020	**Igor Aleksandrovich LARIONOV** 1992	Memorial Human Rights Centre Moscow	administrative detention of 15 days	04/10/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's arrest at the manifestation for fair elections to Mosgorduma in Moscow on 03/08/2019. Article 19.3 § 1 of CAO, 15-day administrative detention. Moscow City Court, 04/10/2019.	3,900
17.	12528/20 21/02/2020	**Sergey Anatolyevich CHUMAKOV** 1984	Yelanchik Oleg Aleksandrovich Moscow	fine of RUB 15,000	22/08/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - complaint about unlawful detention on 14/07/2019 at 1:30 p.m., release on 15/07/2019 at 4 a.m. Raised on appeal Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - manifestation for fair elections to Mosgorduma, Moscow, on 14/07/2019. Article 20.2 § 5 of CAO, fine of RUB 15,000. Moscow City Court, 22/08/2019	3,900
18.	13435/20 27/02/2020	**Nadezhda Aleksandrovna SUCHKOVA** 1974	Antokhin Yevgeniy Vyacheslavovich Moscow	fine of RUB 10,000	30/08/2020, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing a record of administrative offence	3,900

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19.	14096/20 29/02/2020	**Aleksandr Alekseyevich KOSTYUKHIN** 1958	Memorial Human Rights Centre Moscow	fine of RUB 15,000	30/08/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - manifestation for fair elections to Mosgorduma in Moscow on 27/07/2019; convicted under Article 20.2 § 8 of CAO; fine of RUB 15,000, final - Moscow City Court, 30/08/2019	3,900
20.	18238/20 19/03/2020	**Ivan Sergeyevich SEMENYUK** 1994	Memorial Human Rights Centre Moscow	fine of RUB 10,000	08/10/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - manifestation in support of Ivan Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO fine of RUB 10,000. Moscow City Court 08/10/2019	3,900
21.	25335/20 16/05/2020	**Aleksandr Aleksandrovich MERZLOV** 1985	Vologin Aleksey Borisovich Volsk	suspension of driving licence for 1 year and 7 months, fine of RUB 30,000	12/05/2020, Volskiy District Court of Saratov Region		1,000
22.	25900/20 22/06/2020	**Mikhail Davidovich NARODITSKIY** 1974	Memorial Human Rights Centre Moscow	fine of RUB 15,000	14/10/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - arrest of the applicant at the manifestation for fair elections to Mosgorduma in Moscow on 10/08/2019. Article 20.2 § 5 of CAO, fine of RUB 15,000. Moscow City Court, 14/10/2019.	3,900
23.	26803/20 19/05/2020	**Ilshat Nailevich ZAGIDULLIN** 1975		fine of RUB 15,000	06/11/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 03/08/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence	3,900
24.	28133/20 15/06/2020	**Yelena Igorevna OVSYANNIKOVA** 1983	Sekretareva Nataliya Mikhaylovna Moskow	fine of RUB 10,000	02/12/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - manifestation in support of Ivan Golunov in Petrovka str., Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO fine of RUB 10,000. Moscow City Court; 02/12/2019	3,900
25.	28317/20 03/07/2020	**Aleksandr Aleksandrovich SUKHOV** 1988	Memorial Human Rights Centre Moscow	fine of RUB 15,000	14/11/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's arrest at the manifestation for fair elections to Mosgorduma in Moscow on 10/08/2019. Article 20.2 § 5 of CAO, fine of RUB 15,000. Moscow City Court, 14/11/2019.	3,900

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26.	29889/20 13/07/2020	**Anton Sergeyevich KOBETS** 1988	Memorial Human Rights Centre Moscow	fine of RUB 10,000	12/11/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - on 10/08/2019 the applicant was arrested for the purpose of drawing up a record of administrative offence: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see Korneyeva v. Russia, no. 72051/17, § 34, 8 October 2019; Ryabinina and Others v. Russia [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention in excess of 3 hours until 00.30 a.m. on 11/08/2019 (raised on appeal) Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - conviction under article 20.2 § 5 of CAO for participation on 10/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ administrative fine of RUB 10,000. Moscow City Court on 12/11/2019 (appeal decision).	3,900
27.	30020/20 23/06/2020	**Yevgeniy Aleksandrovich VARSHAVER** 1986	Memorial Human Rights Centre Moscow	fine of RUB 10,000	24/09/2019, Moscow City Court	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence (raised in the administrative proceedings) Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - manifestation in support of I. Golunov in Moscow on 12/06/2019. Article 20.2 § 6.1 of CAO fine of RUB 10,000. Moscow City Court, 24/09/2019	3,900

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28.	34309/20 22/07/2020	**Maksim Ildarovich ALIBAYEV** 1991		fine of RUB 15,000	24/10/2019, Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's arrest at the manifestation for fair elections to Mosgorduma on 03/08/2019 in Moscow. Article 20.2 § 5 of CAO, fine of RUB 15,000. Moscow City Court, 24/10/2019.	3,900
29.	35186/20 11/08/2020	**Andrey Vasilyevich ZOLOTOV** 1983	Memorial Human Rights Centre Moscow	fine of RUB 15,000	20/11/2019, the Moscow City Court	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant's arrest at the manifestation for fair elections to Mosgorduma on 03/08/2019 in Moscow. Article 20.2 § 5 of CAO, fine of RUB 15,000. Moscow City Court, 20/11/2019.	3,900

[1] Plus any tax that may be chargeable to the applicants.